TOWN OF MOUNT PLEASANT, SOUTH CAROLINA
BOARD OF ZONING APPEALS
DECEMBER 4, 2023
MINUTES

STAFF REPORT

Present: Stephen Wood, Chair, Giles Branch, Megan Stevens, Aaron Butner, Molly Hall, Julian Hopkins.
Absent: Elliott Barrow (excused).
Staff: Chris Swalhah, Chris Lubert, David Pagliarini, Lynnette Lynes

Mr. Wood called the meeting to order at 6:00 pm.

A. Approval of Agenda

Mr. Butner moved for approval of the agenda. Mr. Branch seconded the motion. All in favor.

B. Approval of Minutes

Mr. Butner moved for approval of the minutes. Mr. Branch seconded the motion. All in favor.

C. Public Comment
D. General Correspondence

There being no correspondence or public comment, Mr. Wood closed public comment and continued with the agenda.

E. Explanation of Procedures
F. Administration of Oath

Mr. Wood administered the oath to those speaking.

G. Business

1. **Case A-02-23, 2131 Pendergrass Lane, TMS #556-08-00-054. Appeal of a zoning official's application §156.226(C) requiring mitigation calculated at twice the number of inches removed of an illegal tree removal. Staff Position**

Mr. Swalhah reviewed staff comments with the Board.

- Ms. Stacy Phelan, owner, reviewed the request with the Board.

- There being no comments, Mr. Wood moved to Board questions.

Mr. Wood closed public comment.

- *Mr. Branch moved for approval based on the findings that the species is a water oak and not a grand tree; §156.226(C) pertains to removal of a grand tree in good health, but based on the pictures provided, the tree was a water oak that was a crotched tree close to the house and if it had been inspected mitigation might not have been required. Ms. Stevens seconded the motion.*

Mr. Swalhah made a point of order that the motion includes an assumption that is not supported by the case as staff could not ascertain the species, size, or health of the tree as it was cut down before staff could inspect the tree.

Mr. Branch withdrew his motion. Ms. Stevens withdrew her second.

- *Mr. Wood moved to uphold the Zoning Administrator's decision and deny the appeal. Mr. Butner seconded the motion. All in favor.*

2. Case V-27-23, 1242 White Flat Road, TMS #560-02-00-005/047. Request for relief from §156.201(D)(Table) to encroach within 3 of the buffers on the parcels to provide space for the existing parking and building.

- *Mr. Wood moved to enter into executive session for legal advice. Mr. Hopkins seconded the motion. All in favor.*

The Board entered into executive session at 6:24 pm and reconvened at 6:40 pm. No action taken while in executive session.

- Mr. Swalhah reviewed staff comments with the Board.

- Ms. Megan Burns, attorney for applicant, reviewed the request with the Board.

▶ *Mr. Butner moved to approve submittal of additional information. Mr. Hopkins seconded the motion. All in favor.*

Ms. Burns continued with her presentation.

▶ There being no comments, Mr. Wood moved to Board questions.

▶ Mr. Wood closed public comment.

▶ *Mr. Wood moved for denial based on the findings that the conversion of the property from a residential use to commercial use was completed without proper permitting and even though it is under new ownership, S.C. case law has repeatedly affirmed that a property owner are not entitled cannot request relief from a self-created hardship and that a claim of unnecessary hardship cannot be based on conditions created by the property owner nor one who purchases property after the enactment of the zoning regulation complaining that the nonconforming use would work a hardship on the new owner as cited in Rush v. City of Greenville, 246 S.C 268, 143 S.E.2d 527 (1965); Georgetown County Building Official v. Lewis, 290 S.C. 513, 351 S.E.2d 584 (Ct. App. 1986); Restaurant Row Associates v. Horry County, supra. Mr. Butner seconded the motion. All in favor.*

3. Case V-44-23, 964 Lansing Drive, TMS #517-03-00-011. Request for relief from the strict application of §156.111(A)(5) to allow the construction of a garage with a height of 19' 6''. The ordinance limits the heights of garages to 18'.

▶ Mr. Swalhah reviewed staff comments with the Board.

▶ Mr. Hunter Baker, representative for applicant, reviewed the request with the Board.

There being no comments, Mr. Wood moved to Board questions.

▶ Mr. Wood closed public comment.

▶ *Ms. Stevens moved for denial based on the findings that the four criteria have not been met. Mr. Butner seconded the motion. Motion passed on a 5 to*

1 vote with Mr. Butner, Mr. Branch, Ms. Stevens, Ms. Hall, and Mr. Wood in favor; Mr. Hopkins opposed.

4. **Case S-04-23, Lot B & C West Coleman Boulevard, TMS #5170600063/65. Request for Special Exception to allow the use of outdoor storage/display for the purpose of the storage and display of boats on the property.**

- Mr. Swalhah reviewed staff comments with the Board.

- *Mr. Butner moved to approve submittal of additional information. Ms. Hall seconded the motion. All in favor.*

- Mr. Heath Hackett, applicant, reviewed the request with the Board.

- There being no comments, Mr. Wood closed public comment.

- *Ms. Stevens moved for approval based on the condition that the site plan submitted with the additional information showing the angled entrance and exit only from Broadway Street and that the boat storage is only used for storage with no maintenance or repairs. Mr. Hopkins seconded the motion. All in favor.*

5. **Case S-05-23, Tract 1, TMS# 5940500219. Request for a Special Exception to allow the use of a gas station in accordance with §4.07.G.1 of the Dunes West Planned Development Ordinance.**

- Mr. Swalhah reviewed staff comments with the Board.

- Ms. Sarah Hamblin reviewed the request with the Board.

There being no public comment, Mr. Wood moved to Board questions.

Mr. Wood closed public comment.

- *Ms. Hall moved for approval based on findings that site plan shows the use would be well within the setbacks for the existing Highway 41 route and the proposed widening of Highway 41. Motion passed on a 5 to 1 vote with Mr.*

Branch, Mr. Hopkins, Ms. Steven, Ms. Hall and Mr. Wood in favor; Mr. Butner opposed.

6. Case V-46-23, 260 Hobcaw Drive, TMS #5140700030. Request for relief from §156.303(Table) to allow a 4' encroachment into a 10' side setback.

Mr. Swalhah reviewed staff comments with the Board.

- Mr. Ross Ritchie, architect, reviewed the request with the Board.

- Mr. Harold Nielson, 256 Hobcaw Drive, reviewed the request with the Board.

- *Ms. Stevens moved to approve submittal of additional information. Ms. Hall seconded the motion. All in favor.*

- Mr. Rick Nielson, McClellanville, and member of Hobcaw Yacht Club, stated that he is opposed to the request and suggested that the applicant is not being a "good neighbor" with his parents who live adjacent to the property. He suggested that the request does not adhere to the recommendations of the Comprehensive Plan as it is not in character with the neighborhood and would not allow open space between adjacent buildings. He asked that the Board deny the request.

- Mr. Lonnie Nielson, 1184 Manor Lane, suggested that the request does not meet the four criteria as there are no extraordinary conditions, denial would not prevent utilization of the property, and it would be a detriment to the character of the neighborhood. He suggested that this is a self-inflicted hardship. He asked that the Board deny the request and not set a precedent.

- Ms. Kathy Stokes-Marshall and Mr. Lee Stokes rebutted that the property was approved in 2020 and they have kept the Nielsons apprised of any changes. They stated that they have expended a substantial amount of time and money for the improvements.

- Mr. Swalhah rebutted and clarified that the requirement of 25 feet for separation was incorrect and this is the combined side setback requirement with a minimum ten feet on one side, so the minimum setback between

adjacent buildings would be 20 feet. He stated that the property currently meets the setback requirements.

- Mr. Wood closed public comment.

- *Mr. Wood moved for approval based on the findings that there is no change in circumstance from when previously approved and the evidence was sufficient at that time to grant approval. Ms. Stevens seconded the motion. Motion passed on a 4 to 2 vote with Mr. Hopkins, Ms. Stevens, Ms. Hall and Mr. Wood in favor; Mr. Butner and Mr. Branch opposed.*

7. Case V-47-23, 636 McCants Drive, TMS# 5320600019. Request for relief from §156.225(C) to allow the removal of a 27'' Magnolia tree.

- Mr. Swalhah reviewed staff comments with the Board.

- Mr. George Zourzoukis reviewed the request with the Board.

- Mr. Wood closed public comment.

- *Mr. Branch moved for approval based on findings that met criteria because of the condition of the tree being a "D" and the location of the tree would be considered extraordinary and exceptional conditions, there would be no detriment to remove a diseased tree and would prohibit the redevelopment of the property if not removed. Mr. Butner seconded the motion. All in favor.*

8. Case V-48-23, 46 Saturday Road, TMS# 5350600229. Request for relief from §156.106(B) to allow the construction of a pool within the 30' impervious surface setback.

- Mr. Swalhah reviewed staff comments with the Board.

- Mr. Adam Young and Ms. Kelley Young, owners, reviewed the request with the Board.

There being no comments, Mr. Wood moved to Board questions.

- Mr. Wood closed public comment.

- *Ms. Stevens moved for approval based on the findings that criteria has been met as property is the only lot on deep water with different shape, the plat did not originally show the impervious setback, would prohibit the use of the property as a pool is needed for therapy for their disabled child and would not be a detriment to the neighborhood. Mr. Butner seconded the motion. Motion passed on a 5 to 1 vote with Mr. Butner, Mr. Branch, Mr. Hopkins, Ms. Stevens, and Ms. Hall in favor; Mr. Wood opposed.*

H. Approval of Final Orders

The Board signed final orders.

There being no further business, the meeting adjourned at 8:05 pm.

Submitted by,
L. Lynes
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